

		(<i>Careau & Co. v. Sec. Pac. Bus. Credit, Inc.</i> (1990) 222 Cal. App. 3d 1371, 1395.) This COA requires there to be a contract between the parties. As noted, Defendant did not sign the Agreement on his own behalf, Plaintiff has not identified any other contract to which Defendant is a party to with Plaintiff, and Plaintiff has not sufficiently pled <i>alter ego</i> liability to potentially hold Defendant liable under the Agreement. The Motion is GRANTED with one final leave to amend as to this COA. <i>Defendant to give notice.</i>
14.	Day v. Ghermezian 24-1372117	Before the Court is the Motion for Summary Judgment, or in the Alternative, for Summary Adjudication, filed on 1/12/26 by Defendants Raymond Ghermezian and Raymond Ghermezian, APLC ("Defendants"). The Motion for Summary Judgment is DENIED, along with Issue 7 in the Motion for Summary Adjudication, as Defendants have not shown that the Fifth Cause of Action presents an inappropriate basis for Declaratory Relief. However, the Motion for Summary Adjudication of Issues is GRANTED as to Issues 1, 3, 5, 6, and 8, which renders Issues 2 and 4 moot. <u>For the First and Third Causes of Action</u>, Defendants have presented evidence to demonstrate that Plaintiff Margo Day ("Plaintiff") cannot establish causation and damages for either claim. (UF 1- 14.) Defendants have also shown that they could not have just disbursed disputed funds without resolving the lien claims. (<i>Sanford v. Rasnick</i> (2016) 246 Cal.App.4th 1121, 1131.) Plaintiff has failed to identify any triable issue of material fact in response. Plaintiff asserts that Defendants failed to timely pay the Medicare lien, but Plaintiff has presented no evidence to show that she authorized them to do so. (UF 9-12.) Plaintiff asserts that Defendants did not timely distribute settlement proceeds but has failed to present evidence sufficient to show a triable issue of fact as to whether that is so, or why the sum later distributed to her was deficient. Nor has Plaintiff presented evidence to show that she would have recovered anything more in the underlying action if the liens and other costs that she has objected to here had not been incurred. (UF 1-14.) The Motion is therefore GRANTED on Issues 1 and 5, which moots Issues 2 and 4. <u>For the Second Cause of Action</u>, Defendants have presented evidence to show that what has been alleged is not sufficient to state a claim for extortion. In response, Plaintiff has not presented evidence to demonstrate that Defendants threatened to withhold money indisputably owed, or failed to pay the Medicare lien once authorized to do so. (UF 1-12.) The Motion is therefore GRANTED on Issue 3.

For the Fourth Cause of Action, Defendants have presented evidence to show that what has been alleged is not sufficient to state a claim for conversion. In response, Plaintiff argues that Defendants acted wrongfully in distributing the settlement proceeds, but has not presented evidence sufficient to show a triable issue of material fact as to whether that was so. (UF 1-14.) The Motion is therefore GRANTED on Issue 6.

Based on the foregoing, the Motion is also **GRANTED** on Issue 8, as Plaintiff has failed to present evidence sufficient to show a triable issue of fact for any surviving cause of action to support a punitive damages claim.

Defendants' Request for Judicial Notice, filed as ROA 74, is **GRANTED** under *Ev. Code §452(d)*, as to the existence of the record, but not as to the truth of any disputed facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Plaintiff's Request for Judicial Notice, filed as ROA 100, is **DENIED**, as the arguments presented therein are not appropriate subjects for judicial notice.

Defendants' Evidentiary Objections in ROA 108 are **SUSTAINED** as to: Obj. 3 [legal conclusion; improper argument]; Obj. 4 as to the dates [foundation, personal knowledge]; Objs. 6, 7 and 8, as to the first sentence in each, from "in response to..." [legal conclusion; improper argument]; Obj. 9 as to "asking for a waiver..."; Obj. 10 as to "[Rule.....as I expected," and as to the final sentence [legal conclusion; improper argument]; Obj. No. 11 as to "asking for clarification... accounting" and as to "and blatantly lied...earlier" [foundation; improper argument]; Obj. 12 as to "This letter...APLC" [foundation]; Objs. 13 and 14, as to "even though... Medicare Lien" [foundation; improper argument]; Obj. 15 as to "includes the lie... Medicare Lien" [foundation; improper argument]; Obj. 16 as to "in an effort...1.15(d)(7)" [foundation, legal conclusion, improper argument]; and Obj. 18 as to "It appears to me... late" [foundation, improper argument]; otherwise **OVERRULED**.

Defendants' Evidentiary Objections in ROA 109 are **SUSTAINED** as to: Obj. 2 as to "Prior to...owe" [foundation, legal conclusion; improper argument]; Obj. 3 as to "filled with lies and half-truths" [foundation, legal conclusion, improper argument]; Objs. 5 and 6 [foundation, legal conclusion, improper argument]; Obj. 7 as to the first sentence [foundation, improper argument]; and Objs. 8 – 10, 12-15 [foundation, legal conclusion, improper argument]; otherwise **OVERRULED**.

Defendants are to give notice of this ruling.

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